

Gangapuram Yeshoda, Medak Dist Anr vs Gangapuram Padma Padmavathi, Medak ... on 14 October, 2022

HONOURABLE SRI JUSTICE SAMBASIVA RAO NAIDU

C.M.A.NO.5 of 2017

JUDGMENT :

The appellants herein are respondent Nos. 1 and 2 in O.P.No.53 of 2012 on the file of Senior Civil Judgr, Medak which was filed by one Gangapuram Padma @ Padmawathi/1st respondent herein. Being aggrieved by the judgment in the said O.P., dated 29.04.2016, the appellants have filed the present appeal. The said petition was filed under Section 372 of Indian Succession Act by the 1st respondent/petitioner for issuance of Succession Certificate for drawing death benefits, family pension of one Gangapuram Ramakrishna who worked as police constable (PC 1461) and died in a road accident and also for appointment on compassionate grounds. The parties are referred to as they are shown in the petition filed before the trial Court.

2. As per the averments made in the said petition, the petitioner has claimed that she is legally wedded wife of said Ramakrishna who herein after will be referred as deceased, having married him on 10-04-1991. The 1st respondent therein is his mother and 2nd respondent was claiming herself as wife of deceased. The deceased was working as police constable at Medak Rural police station under the control of 3rd respondent.

2 SSRN,J

3. It was further averred in her petition that on 18-11-2011, the deceased on the instructions of the Inspector of Police, Medak went to Narsapur on duty on his motor-bike and returned to Medak on 19-11-2011, but on the way he met with an accident at Rampur and died. A case under Section 304-A I.P.C. was registered against unknown vehicle which caused the accident.

4. The petitioner having claimed herself as legally wedded wife of deceased filed O.P.No.53 of 2012 before Senior Civil Judge, Medak against 4 respondents viz., widowed mother of deceased (R1), Smt.Maheswari (R2), Superintendent of Police, Medak (R3) and to whomsoever it may concern (R4). According to the petition averments, it is stated that R2 Smt.Maheswari was claiming herself as wife of deceased and that though the petitioner approached respondent No.3 with a request to release the death benefits, family pension and for appointment, her request was not considered. Therefore, the petitioner sought for succession certificate in her favour to draw death benefits, family pension of the deceased.

5. Respondents No.1 and 2 in the said petition i.e., the appellants herein have opposed the said claim by filing a common counter, respondent No.3 filed a separate counter.

3 SSRN,J

6. Respondents No.1 and 2 herein have pleaded before the trial Court that though the marriage of respondent No.1 was performed with deceased on 10-04-1991, they hardly lived for 3 months, disputes arose between them, as such they felt it was very difficult to live together. They have obtained divorce in the presence of elders on 22-03-1992. There was a custom in their caste which permits such divorce before the elders, and a mutual consent divorce deed had been executed before the elders on a Non-Judicial Stamp worth Rs.5/-. Therefore, the petitioner is no longer wife of deceased and as per the divorce deed, they are entitled to go for another marriage. The deceased married 2nd respondent herein on 08-05-1992 at Medak as per Hindu Traditions and Customs, since then they lived together as wife and husband, they were blessed with two sons aged about 18 years and 15 years at the time of the said counter. While admitting the death of deceased in a road accident, they have further claimed that the petitioner is no longer wife of deceased, she is not entitled to obtain Succession Certificate. Respondent No.2 filed an application before Superintendent of Police, Medak for release of death benefits etc., but as her request was not accepted, she approached A.P. Administrative Tribunal and filed O.A.No.8817 of 2012 seeking a direction to S.P. for release of death benefits etc., 4 SSRN,J The Tribunal gave a direction to Superintendent of Police, Medak to pass appropriate orders on her application, but no order was passed by Superintendent of Police. Respondents No.1 and 2 have filed some documents in support of their claim and pleaded that the petition filed by petitioner is liable for dismissal due to non-joinder of the sons of deceased as parties to petition and sought for dismissal of the petition.

7. A separate counter has been filed by the 3rd respondent i.e., Superintendent of Police, Medak stating that the deceased worked as police constable. As per his Service Register, the 2nd respondent is his wife, they have got two sons who were aged about 10 years and 6 years. The 1st respondent is his mother and one G.Pentaiah is his father. The above details were furnished by the deceased and the same was attested by the concerned Officers, they have no record to believe that the petitioner herein is his legally wedded wife. In the said counter, it is further stated that 2nd respondent is shown as Nominee of deceased. The 3rd respondent has stated that they have received an application from the petitioner, but if a Government employee had two wives, it amounts to 'Bigamy', a misconduct, and sought for dismissal of the petition.

5 SSRN,J

8. The trial Court framed the following point for disposal of the petition, viz :

Whether the petitioner had made out sufficient grounds for issuance of Succession Certificate in her favour?

9. The petitioner was examined as PW.1 and she has marked Exs.P1 to P6. The 2nd respondent was examined as RW.1. RWs.2 to 5 were also examined and Exs.R1 to R5 are marked by them.

10. The learned Senior Civil Judge having considered oral and documentary evidence of both parties and having heard their respective arguments came to the conclusion that the marriage of the petitioner with the deceased was still subsisting as there was no valid divorce, the deceased being a Government employee cannot contract a second marriage without obtaining divorce, even though

there is marriage between 2nd respondent and deceased it is not valid. The 2nd respondent could not prove the birth of two sons, thereby though children born from the wedlock to the 2nd wife they are not entitled to any benefit, therefore allowed the petition by directing for issuance of Succession Certificate in favour of petitioner and 1st respondent.

11. Being not satisfied with the said order, the respondents No.1 and 2/appellants filed the present appeal on following grounds.

6 SSRN,J

12. The Court below failed to see that respondents No.1 and 2 proved that the marriage between deceased and petitioner has been dissolved by way of customary divorce which is evident from Exs.R4 and R5.

13. The trial Court failed to see that the marriage of 2nd respondent with the deceased was proved through Exs.R1 to R5.

14. The trial Court failed to observe that petitioner herein failed to prove that she was living with the deceased after the dissolution of their marriage in 1992.

15. The trial Court failed to consider that 2nd respondent proved that during her wedlock she gave birth to two children.

16. The Service Records of deceased show the 2nd respondent as his wife, therefore, it is a proof that deceased married the 2nd respondent after the dissolution of his marriage with the 1st respondent.

17. Therefore, the appellants sought for setting aside the order in O.P.No.53 of 2012.

18. Heard both parties.

19. Now the following points arose for consideration are :

1. Whether the marriage of petitioner with defendant was dissolved?

2. Whether the marriage of 2nd respondent with defendant is valid?

7 SSRN,J

3. Whether the order of trial Court recognizing the petitioner and respondent No.1 alone entitled to Succession Certificate is incorrect and liable to be set aside?

20. Initially the C.M.A. was filed against Respondents No.1 to 3. After the appellants filed the present C.M.A., the sons of 2nd respondent viz. G.Satish Kumar and G.Sai Prakash have filed C.M.A.M.P.No.772 of 2017 under Order 1 Rule 10 C.P.C. with a request to implead them as

Respondents No.4 and 5. The said petition was allowed by this Court on 24-02-2022 and necessary amendment was made to the appeal. Therefore, the sons of respondent No.2 are now added as respondents No.4 and 5.

21. As per the entire record placed before the Court, there is no dispute about the marriage of the petitioner and the deceased on 10-04-1991. There is no dispute about his death in a road accident on 19-11-2011. The appellants herein have claimed that disputes arose between the petitioner and deceased within 3 months from the date of their marriage and the matter was settled before the elders and that there is a customary divorce in the presence of elders. They have also claimed that subsequent to the said customary divorce, the deceased married respondent No.2 on 08-05-1992.

22. During her cross-examination, the petitioner/PW.1 stated that she lead happy marital life with the deceased for two 8 SSRN,J years and due to petty quarrels took place, she went to the house of her parents and since then she was staying with her parents. She denied the suggestion that there is dispute between the couple within three (3) months from the date of marriage. Therefore, even as per her own admission, the petitioner is away from the deceased from more than 18 years. When she was asked about the marriage between the deceased and respondent No.2, she said that she does not know the deceased married second respondent and they had two children. It is elicited from PW.1 that prior to the accident in which the deceased died, he met with another accident and she did not lodge any report about the said accident to the police. Though she claimed that she visited the deceased in the hospital, no evidence is placed in support of the said visit. The other circumstances like divorce petition, maintenance case between the parties shows that they were not in good terms and not living together. Admittedly, the deceased filed a divorce petition and petitioner filed a case claiming maintenance.

23. The record further shows that the deceased filed a petition for divorce O.P.No.22/1994 on the file of Sub-Court of Medak. The petitioner was cross-examined about this divorce O.P. The petitioner claimed that she does not know deceased filed O.P.No.22 of 1994 and denied the suggestion that she engaged an 9 SSRN,J Advocate by name Sripathi Rao. However in the further cross- examination, she voluntarily stated before the Court below that she has engaged an Advocate by name Miss V.Karuna and said Advocate defended her in both maintenance case and divorce petition. Therefore, it is quite clear that she has got knowledge about the divorce petition. The respondents No.1 and 2 have marked Exs.R4 and R5 through the second respondent. Ex.R4 is the certified copy of petition filed by the deceased in O.P.No.22 of 1994. In the said petition, the deceased has categorically stated that he married the petitioner on 10-04-1991, they lived together as wife and husband for 3 months, thereafter there were minor disputes thereby, the petitioner started going to her mother's house without his consent and knowledge. He has approached the petitioner and tried to bring her back but she did not join him. She paid deaf ear to the advice of elders. She was separated from him since July 1991. Therefore, a panchayat was held on 22.03.1992 and customary divorce was effected between the couple in the presence of elders, therefore, he sought for divorce. The respondent has marked the certified copy of counter filed in the above O.P. as Ex.R5. According to the said counter, the petitioner has stated that due to misunderstandings and disputes with the deceased, she was living away from her husband since 10 SSRN,J July 1991. The gap of separation and misunderstandings between them was highly developed and it has become

very difficult for them to live together and it was highly impossible to rejoin her husband thereby, sought for allowing the petition filed by the deceased Rama Krishna. The certified copy was obtained from the Court where the said counter was filed. As per the signature on the counter, it is tallied with the signature of the petitioner who filed succession O.P. In the light of the evidence of petitioner that she had engaged Advocate in divorce petition, she cannot deny the said counter. However, subsequently she has changed the signature and started writing her name in capital letters as if it is her signature, perhaps with a view to avoid the arguments about this counter.

24. The second respondent in the succession O.P. has claimed that soon after the customary divorce between petitioner and Rama Krishna, she was given in marriage to him and during their conjugal life, gave birth to two sons who were subsequently impleaded in the present appeal. The certified copy of order in the divorce O.P. shows that the said petition was dismissed for default when the deceased could not prosecute the petition. It is on record that the petitioner was receiving maintenance from the deceased Rama Krishna till his death. All these circumstances 11 SSRN,J would show that the petitioner and deceased lived together for a short period and thereafter, she left to her parent's house and was living with them. The wedding card and evidence of RWs.1 to 4 would show the second respondent was married to the deceased, they had two children and they lived as wife and husband within the knowledge of employer of the deceased which is evident from his service records. The record placed by the employer of the deceased would show that the deceased has furnished the name of second respondent as his wife and has shown the children as his dependents. Therefore, it is quite clear that the petitioner is away from her husband for about more than 18 years. Thereafter the deceased married respondent No.2, they lead marital life which is in the knowledge of one and all, they gave birth to two sons and suddenly came up with the present O.P. after his death and it is obviously for the purpose of getting retirement benefits, employment on compassionate grounds. In the light of what is deposed by witnesses examined on behalf of the respondents, it shows that the second respondent served the deceased as his legally wedded wife and gave birth to two sons. This might be the reason for the deceased to name her as nominee to receive the retirement benefits, pension etc., 12 SSRN,J

25. The learned counsel for the appellants relied on a Judgment between "Rameshwari Devi V. State of Bihar and others"¹, wherein it was observed that :

"In case of children born out of second marriage to a Hindu deceased employee, according to the Hindu Marriage Act, 1956, those children were legitimate though the marriage itself was void. When there is evidence both oral and documentary to show that the deceased employee and the second spouse were living as wife and husband, though cohabitation for long period give rise a strong presumption of wedlock. It was not necessary for the State Government to require second spouse to prove her marriage in Court of Law in so far as entitlement to pension was concerned. The Hon'ble Apex Court was pleased to observe that in view of cohabitation for long period, it is presumption of marriage between the parties".

26. He has also relied on another Judgment between "Vidhyadhari and Others V. Sukhrana Bai and Others"², the Hon'ble Apex Court was pleased to observe that :

"When the deceased employee made a nomination in favour of the second wife to receive retirement benefits of his employment even though she herself was not legally wedded wife, yet her children were legitimate for the purpose of share in their father's employment dues.

27. The appellants herein are able to establish that soon after the disputes between respondent/petitioner and deceased Ramakrishna, a customary divorce was effected before the elders and subsequently, he married the second respondent with whom (2000) 2 Supreme Court Cases 431 (2008) 2 Supreme Court Cases 238 13 SSRN,J he lead marital life for more than 18 years which is within the knowledge of respondent/petitioner, she did not file any criminal case with an allegation that the marriage between the deceased and Respondent No.2 is an offence of Bigamy. She cannot claim that she had no knowledge about the said marriage because she was receiving maintenance from the deceased by staying away from him. She did not take any care for the deceased when he was hospitalized due to an accident. During their evidence, RWs.2 to 4 deposed about the marriage of respondent No.2 with the deceased and also about the customary divorce. Even if the said customary divorce is not accepted, still there is evidence on record that the second respondent lived with the deceased as his wife for a considerable lengthy period of 18 years. She was shown as nominee to receive the retirement benefits of the deceased. Even though the petitioner claims to be a legally wedded wife of the deceased, the subsequent events including her own evidence that there were disputes between the couple and left to her parents house and remained there without making any attempt to join him clearly shows that she did not care to join the deceased. It was not her case that she tried to rejoin her husband. The counter filed by petitioner vide Ex.R5 clearly indicates her mind that she don't want to continue as wife of deceased. Therefore, she cannot 14 SSRN,J claim that she is legally wedded wife and entitled to obtain succession certificate and retirement benefits.

28. The sons of respondent No.2 have filed a petition vide C.M.A.M.P.No.772 of 2017 and sought to implead as respondents No.4 and 5. They have claimed that though their mother is shown as respondent No.2 in O.P.No.53 of 2012, they are not arrayed as parties. Since they are legal heirs of defendant No.2, they are proper necessary parties. Their application was allowed by Court on 24-02-2022. While filing the said application, they have filed their School Record, Aadhar card and other documents which show they are sons of deceased Ramakrishna. In fact in the Service Records of deceased, he has shown these two respondents as his sons. In the Inquest Report also there was a mention about respondents No.4 and 5. The trial Court made an observation that though respondent No.2 claimed that she gave birth to two sons, failed to prove the above said children as she did not file any school record. The Court below having observed that as per Section 16 of Hindu Marriage Act, children of void marriage are legitimate children and entitled to get share in the estate of the deceased father, did not allot any share in the pension and retirement benefits of their father. It may be true that they were not parties to the petition but it was brought to the notice of the 15 SSRN,J trial Court that the deceased married respondent No.2 and they were blessed with two sons.

29. The petitioner had no issues. In fact she has hardly spent 3 months with the deceased which is evident from her own counter filed in O.P.no.22 of 1994. The petitioner simply deposed that she does not know if the deceased married respondent No.2. The wedding card marked as Ex.R2, house

hold card marked as Ex.R1 clearly show that Ramakrishna married respondent No.2 on 08-05-1992. This marriage was performed within one year after the marriage of petitioner with the deceased. PW.1 has admitted that she is getting maintenance from the deceased from 1996. As per the evidence of RW.5, the Inspector of Police, the deceased Ramakrishna has shown respondent No.2 as his wife, respondents No.4 and 5 as his sons in the Service Register. In his cross- examination, he further stated that the dead body was handed over to the respondent No.2. Even though he deposed as if they paid Rs.10,000/- towards funeral expenditure to both petitioner and respondent No.2, it was not the case of petitioner before the Court below that she received Rs.10,000/- and she performed the last rites of the deceased.

16 SSRN,J

30. In a Judgment between "Badri Prasad V. Dy.Director of Consolidation"³, it was observed that "a strong presumption arise in favour of wedlock if the parties lived together for a long spell as husband and wife. Therefore, as per the evidence of RW.3, averments made in the counter filed by the petitioner vide Ex.R5, it shows that there was customary divorce between the petitioner and deceased Ramakrishna. Even if it is believed that there is no divorce, the conduct of the petitioner in staying away from deceased without raising any objection for his conjugal life with the respondent No.2 and her own counter shows that she seized to be the wife of deceased. It may be true that she is legally wedded wife but with her own conduct, remaining at her parents house for more than 18 years coupled with the other evidence clearly shows that she has accepted the customary divorce thereby, she did not raise any objection nor she has filed any complaint for the marriage between deceased and respondent No.2. But all of a sudden after the death of Ramakrishna in a road accident, she want to take advantage of the marriage which she ignored for more than 18 years.

1978 3 SCC 527 17 SSRN,J

31. In a similar case between "Rameshwari Devi V. State of Bihar and Others"⁴ the Hon'ble Apex Court was pleased to observe that when there is evidence to believe that the deceased and his second wife are living together for a lengthy period, it shall be presumed that it is a valid marriage. In the present case, there is evidence before the Court to believe that the respondent No.2 herein is married to deceased as per the caste customs which is evident from the wedding card and house hold card produced by the respondents.

32. Therefore, the evidence establish the marriage between the respondent No.2 and deceased, their conjugal life for more than 18 years, birth of respondents No.4 and 5 to the Ramakrishna through respondent No.2 thereby, the mother, respondent No.2 wife and children, who are shown as respondents No.4 and 5 are actually entitled to receive pension, retirement benefits and even to a right for appointment under compassionate grounds.

33. The purpose of granting retirement benefits, family pension, employment on compassionate ground etc., is to provide livelihood and it is only for assurance to the future of the successor of the deceased Government employee. It is nothing but a security (2000) 2 Supreme Court Cases 431 18 SSRN,J to the wife and children. Had the employee been alive, he would have maintain his wife,

children and provide necessities including education and employment to his children. When there is sudden death of such an employee, the wife and children who are depending upon the husband, suddenly lost their livelihood and they will be on roads. If pension etc., of such an employee were ordered in favour of a person who did not stay with the husband who in fact neglected him and if the wife and children who subsequently came into his wife were denied they will have to suffer a lot. In the present case if the pension etc., are granted to the petitioner who left the deceased within 3 months of the marriage who filed a counter in the previous petition filed by him consenting for grant of divorce by leaving wife who served him for more than 18 long years, it is nothing but injustice to such a loyal wife. The petitioner has been receiving maintenance and staying away from the deceased, thereby she cannot claim that she had no knowledge of the second marriage through which the deceased got two children.

34. In the above referred judgment (Vidyadhari Sukarna and others vs Sukhrana Bai and others), the Hon'ble Apex Court was pleased to give a direction to the 2nd wife to pay 1/5 share of pension to the 1st wife and directed her to furnish 19 SSRN,J undertaking for such payment. In the case on hand, the mother, 2nd respondent and children of the deceased were entitled to receive the pension, death benefits and respondent Nos.4 and 5 being the children of the deceased are even entitled to employment on compassionate ground. In view of the fact that the petitioner was receiving maintenance from the deceased till her death, equities will work out if a direction is given to the 2nd respondent to pay 1/5 share of the pension to the petitioner, to that effect she shall give an undertaking.

35. In the result, the Civil Miscellaneous Appeal is allowed. The Order of the trial Court by which Succession Certificate was granted in favour of the petitioner, is set aside. The appellant herein and respondent Nos.4 and 5 are entitled to Succession Certificate, subject to the condition of 2nd appellant wife giving undertaking for payment of 1/5 pension to the 1st respondent/petitioner.

Consequently, Miscellaneous applications if any, are closed. There shall be no order as to costs.

JUSTICE SAMBASIVA RAO NAIDU Date: 14.10.2022 PLV
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